

Background

Plaintiff filed a Motion to vacate dismissal and enter judgment pursuant to stipulation. The Motion and its supporting documents are timely.

This Motion is unopposed.

Plaintiff alleges Defendant defaulted on payments per a written agreement.

Analysis

Mail service was completed at an address for the Defendant where he was personally served with notice of the Summons and Complaint.

Though Defendant never filed an Answer, he did enter into a Stipulation with Plaintiff on this very matter, showing, by a preponderance of the evidence, that he was aware of this litigation. Defendant has made no effort to file a change of address with the court, nor indicate in any other way that the mailing address listed in the attachment to the Complaint is incorrect. Thus, the court finds that Defendant was properly noticed of this Motion.

The parties entered into a CCP 664.6 agreement where the Defendant was to follow a particular fee payment schedule. If Defendant failed to abide by the payment schedule, then the agreement called for the dismissal to be vacated and judgment to be entered in the amount of \$5,041.56, plus costs, and less any credits for payments received.

The agreement was filed with the court.

The case was then dismissed.

The Defendant made payments of \$3,124.56.

Defendant defaulted on the payments.

Costs are \$0.

Disposition

Plaintiff's Motion is granted. Judgment will be entered in the amount of \$1,917.

Plaintiff to file order on Motion, as well as submit Judgment.

6. 9:00 AM CASE NUMBER: L24-11721

CASE NAME: CRESER CAPITAL FUND VS. MICHELLE FRANCIS

*HEARING ON MOTION IN RE: MOTION TO BE RELIEVED AS COUNSEL FILED BY JULIA A. CLAYTON
(DEF'S COUNSEL) ON 04/01/2026

FILED BY: FRANCIS, MICHELLE

TENTATIVE RULING:

This Motion was continued by counsel for the Defense to 9/1/26, 9am.

7. 9:00 AM CASE NUMBER: L25-01111

CASE NAME: CITIBANK N.A. VS. PETER GILMOUR

*HEARING ON MOTION IN RE: MOTION FOR JUDGMENT ON PLEADINGS FILED BY PTLF. ON
04/07/2026

FILED BY: CITIBANK N.A.

***TENTATIVE RULING**

Plaintiff filed a Motion for Judgment on the Pleadings, as well as an accompanying Declaration. The moving papers were timely served by mail on the address for Defendant provided in the Answer.

The Declaration reflects Plaintiff's attempt to meet and confer with Defendant prior to filing of this Motion, as required by CCP 439.

The Motion is unopposed.

Background

Plaintiff's Motion argues that Defendant's Answer both admits the allegations of the Complaint and offers no defense.

The Complaint alleges a breach of contract, in that Defendant failed to repay a credit loan to Plaintiff in the amount of \$6,894.42. Specifically, the Complaint alleges that Defendant failed to make payments on the contract, that Defendant refuses to pay Plaintiff the amount owed under the contract. Generally, the Plaintiff alleges that they suffered damages.

The agreement, attached to the Complaint, appears to reflect a credit card loan. The agreement reflects terms of acceptance, payment, and payment frequency, as well as consequences for nonpayment. The attachment also includes a document suggesting that the agreement terms were made to Defendant upon her application for the credit card.